

# M/S R.D. Ice & Cold Storage (P) Ltd. v. Dakshinanchal Vidyut Vitran Nigam Limited And Others

High Court of Judicature at Allahabad · Division Bench · 15 September 2025 · Writ - C No. 6246 of 2006 with Writ - C No. 55908 of 2007 · **Both writs allowed; 2005 assessment by EE (Revenue) quashed; liberty to appeal the 2007 EE (Distribution) ex-parte assessment within four weeks without pre-deposit, to be heard and decided by reasoned order within eight weeks; other prayers not pressed**

## HEADNOTE

An assessment bill and demand notice issued in purported exercise of Section 135 of the Electricity Act, 2003 read with clause 6.8(c) of the U.P. Electricity Supply Code, 2005 cannot stand if passed by the Executive Engineer (Revenue). The power to pass an assessment order lies with the Executive Engineer (Distribution). The revised assessment dated 16 December 2005 and demand notice dated 20 December 2005 were therefore quashed. A later revised ex-parte assessment passed by the Executive Engineer (Distribution) (order dated 3 September 2007 and bill dated 1 September 2007) was not examined on the merits. The consumer was given liberty to appeal against that assessment within four weeks without pre-deposit, a substantial amount having already been deposited; the appellate authority is to grant a hearing and pass a reasoned order in accordance with law within eight weeks of filing. Challenges to the vires of clause 8.2(iv) vis-à-vis Section 126(6), and to the State Government's 27 June 2006 designation of Executive Engineers as ultra vires Section 126, were not pressed.

## FACTUAL SUMMARY

M/s R.D. Ice & Cold Storage (P) Ltd. filed two writs against Dakshinanchal Vidyut Vitran Nigam Ltd. Writ-C No. 6246 of 2006 challenged a revised assessment order/bill dated 16 December 2005 and a demand notice dated 20 December 2005, issued in purported exercise of Section 135 of the Electricity Act, 2003 read with clause 6.8(c) of the U.P. Electricity Supply Code, 2005, and also sought to declare clause 8.2(iv) of the Code ultra vires Section 126(6). Writ-C No. 55908 of 2007 challenged a revised ex-parte assessment order dated 3 September 2007 and bill dated 1 September 2007, sought a restraint on disconnection and recovery, and challenged the State Government's 27 June 2006 designation of the licensee's Executive Engineers as ultra vires Section 126.

The 2005 assessment was passed by the Executive Engineer (Revenue). Counsel submitted that only the Executive Engineer (Distribution) could assess. The 2007 assessment was passed by the Executive Engineer (Distribution). Other prayers, including both vires challenges, were not pressed.

## REUSABLE CONSTRUCTIONS

1. An assessment bill and demand notice issued in purported exercise of Section 135 of the Electricity Act, 2003 read with clause 6.8(c) cannot stand if passed by the Executive Engineer (Revenue); the power to pass an assessment order lies with the Executive Engineer (Distribution). ¶ 5
2. Where a revised ex-parte assessment has been passed by the Executive Engineer (Distribution), the writ court may relegate the consumer to appeal without pre-deposit if a substantial amount has already been deposited, directing the appellate authority to grant a hearing and pass a reasoned order. ¶ 6

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.8

An assessment under s.135 read with clause 6.8(c) passed by the Executive Engineer (Revenue) is without competence and is quashed

### QUESTION

May the Executive Engineer (Revenue) pass a revised assessment bill and demand notice issued in purported exercise of Section 135 of the Electricity Act, 2003 read with clause 6.8(c) of the Supply Code, or does that power lie only with the Executive Engineer (Distribution)?

### HOLDING

The power was not with the Executive Engineer (Revenue) to pass the assessment bill and the demand notice; the power lies with the Executive Engineer (Distribution). Writ-C No. 6246 of 2006 is allowed and the revised assessment dated 16 December 2005 and the demand notice dated 20 December 2005 are quashed and set aside. ¶ 5

#### QUALIFIER

The Court accepted counsel's submission without citing a designation notification or a numbered Code/Act provision for the competence rule.

**FLAG** The 2005 papers were issued under s.135 r/w clause 6.8(c). The competence holding does not resolve that mix of a theft section with the unauthorised-use clause, nor whether the assessing officer is designated under s.126. Source PDF also contains listing orders of 9.9.2015 and 1.10.2015 (Krishna Murari and Amar Singh Chauhan, JJ.) and 18.7.2025 (same coram as the judgment).

#### HOLDING-UNIT · EA2003::127

Revised ex-parte assessment by the Executive Engineer (Distribution) left to appeal without pre-deposit, with hearing and a reasoned order

#### QUESTION

Where a revised ex-parte assessment has been passed by the Executive Engineer (Distribution), will the writ court quash it or relegate the consumer to appeal?

#### HOLDING

Writ-C No. 55908 of 2007 is allowed only to the extent of granting liberty to appeal against the revised assessment order dated 3 September 2007 and the revised assessment bill dated 1 September 2007 within four weeks, without payment of any pre-deposit, a substantial amount having already been deposited. The authorities are to grant an opportunity of hearing and thereafter pass a reasoned order in accordance with law within eight weeks of filing of the appeal. ¶ 6

#### QUALIFIER

The Court did not name Section 127 or construe the statutory pre-deposit in s.127(2); waiver rests on amounts already deposited.

**FLAG** Keyed to s.127 as the statutory appeal against a final assessment. The Court said only 'file appeal'. The 2007 order is described as ex-parte; the Court did not quash it on that ground.

#### PRINCIPLE TAGS

**assessment-must-be-by-ee-distribution-not-ee-revenue** A revised assessment bill and demand notice issued in purported exercise of s.135 read with clause 6.8(c) by the Executive Engineer (Revenue) were quashed. The power to pass the assessment lies with the Executive Engineer (Distribution). ¶ 5

**alternative-remedy-relegation** The 2007 revised ex-parte assessment passed by the Executive Engineer (Distribution) was not examined on the merits. The consumer was given four weeks to appeal without pre-deposit (substantial amount already deposited); the authority is to hear and pass a reasoned order within eight weeks of filing. ¶ 6

#### NOT DECIDED — NEGATIVE AUTHORITY

##### NOT DECIDED — WHETHER CLAUSE 8.2(IV) OF THE SUPPLY CODE IS ULTRA VIRES SECTION 126(6) OF THE ELECTRICITY ACT, 2003

Prayed in Writ-C No. 6246 of 2006. The other prayers in both writs, including this vires challenge, were not pressed. ¶ 1, 6

##### NOT DECIDED — WHETHER THE STATE GOVERNMENT'S 27 JUNE 2006 DESIGNATION OF THE LICENSEE'S EXECUTIVE ENGINEERS IS ULTRA VIRES SECTION 126

Prayed in Writ-C No. 55908 of 2007. Not pressed. ¶ 2, 6

##### NOT DECIDED — MERITS AND QUANTUM OF THE 1.9.2007 / 3.9.2007 REVISED EX-PARTE ASSESSMENT BY THE EXECUTIVE ENGINEER (DISTRIBUTION)

Left to the appeal, with hearing and a reasoned order. ¶ 6

##### NOT DECIDED — WHETHER THE 2005 DEMAND WAS A THEFT ASSESSMENT UNDER S.135 / CLAUSE 8.2 OR UNAUTHORISED USE UNDER CLAUSE 6.8

The 2005 papers invoked s.135 read with clause 6.8(c). Quashed only for want of competence of the Executive Engineer (Revenue). ¶ 1, 5

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*A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.*